HILCHOT PESAH - SHULHAN ARUKH

Finding Hames on Pesah, Mukseh & the Be-Mashehu Rule: Hilchot Pesah Simanim 446–447

Hilchot Pesah - Shulhan Arukh

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–432	30 days before Pesach; month of Nisan; Shabbat HaGadol; Bedikat Chametz timing; the bracha
Class 2	432–433	Why "al biur" not "al bedikat"; candle vs torch; where to check; high/low places; hole in walls; synagogues
Class 3	434–437	After Bedikah — bitul night and day; chametz timeline; appointing agents; missed bedikah; renting a house
Class 4	438–440	Mouse/child with chametz; kezayit threshold; kavua principle; non-Jew depositing chametz
Class 5	443–444	Chametz on Erev Pesach after six hours; calculating the times; smelling chametz; Erev Pesach on Shabbat
Class 6	**446–447**	**Finding chametz during Pesach; muktze on Yom Tov; non-Jew's chametz in your domain; introduction to kashrut principles; mixtures of chametz on Pesach (be-mashehu)**

Note: Siman 445 (methods of bi'ur chametz — burning, breaking down, scattering, throwing into the sea) was covered briefly at the end of the previous class. Siman 442 (ta'arovet chametz) still to be revisited.

Siman 446 — Finding Chametz During Pesach (מי שמוצא חמץ בתוך המועד)

Contains 4 Se'ifim

Se'if 1 — Finding Chametz on Chol HaMoed vs. Yom Tov

Shulchan Aruch: If you find chametz in your possession during Pesach:

On Chol HaMoed

- **Immediately** take it out and destroy it.
- Do not delay — the concern is you may forget about it or come to eat it.

- Methods of destruction (for Sephardim): burn it, flush it down the toilet, throw it into the sea — any of the three forms we learned. Ashkenazim require specifically burning.

On Yom Tov (1st and 7th Day)

- You **may not move it** — it is **muktze mahamat gufo** (the highest class of muktze: it has no permitted use whatsoever — you can't eat it, you can't benefit from it).
- **Cover it with a utensil** until after the Chag, then destroy it.
- You cannot burn it in place either, even if it happens to be near a fire — because burning on Yom Tov is only permitted le-tzorech ochel nefesh (for food preparation purposes), and burning chametz for destruction is not ochel nefesh.

The Major Question: What If You Didn't Do Bitul Before Pesach?

Scenario	Status	What To Do on 1st/7th Day
Did bitul before Pesach	Mid'oraita: you don't own the chametz (bitul removes ownership). Mid'rabbanan: still must destroy it.	Cover it over. Wait until after the Chag to destroy. Do not violate muktze.
Did NOT do bitul before Pesach	**Isur de'oraita** — every moment it is in your house, you are violating Bal Yera'eh / Bal Yimatzei (owning chametz on Pesach). You cannot do bitul now — it's too late.	**Shulchan Aruch / Rambam:** Still cover it over and wait. Do not violate muktze. Even though there's an isur de'oraita of owning, it is a **passive** violation (shev ve'al ta'aseh), not an active one. Better to passively violate a de'oraita than to actively violate the de-rabbanan of muktze.

Some Rishonim disagree and hold that if you didn't do bitul, you should violate muktze and carry it out to stop transgressing Bal Yera'eh. However, the Shulchan Aruch follows the Rambam that even in this case, one covers it over.

Best Option: Ask a Non-Jew

- You may explicitly ask a non-Jew to come, take the chametz, and destroy it.
- **Why is this permitted?** Asking a non-Jew to do melachah is normally asur de-rabbanan (shvut). But here it is **shvut de-shvut le-tzorech mitzvah** — a double rabbinic leniency for the sake of a mitzvah — which is permitted.

What About Second Day Yom Tov (2nd and 8th Day — Outside Israel)?

Shulchan Aruch: Yesh mi she'omer — some Rishonim hold that second day Yom Tov has the status of Chol HaMoed for this matter.

Mishnah Berurah's ruling (consensus of poskim):

Scenario on 2nd/8th Day	What To Do
Did bitul before Pesach	Cover it over — no isur de'oraita of ownership, so no reason to violate muktze
Did NOT do bitul before Pesach	**Take it out and destroy it** — better to violate muktze (de-rabbanan) on the second day of Yom Tov (also de-rabbanan) — a double de-rabbanan — rather than continue violating the isur de'oraita of Bal Yera'eh

Rationale: On the first day (de'oraita Yom Tov), the Rambam/Shulchan Aruch say don't actively violate even a de-rabbanan against a passive de'oraita. But on the second day (de-rabbanan Yom Tov), combining two de-rabbanans (muktze + second day) against a de'oraita tips the balance.

Se'if 3 (Discussed in class) — A Non-Jew's Chametz That Entered Your Property

Shulchan Aruch: If you live near a non-Jew and his chametz rolled or was pushed into your domain on Pesach (e.g., wind blew bread onto your balcony, a child pushed it over):

- You are **not violating any isur de'oraita** — it doesn't belong to you.
- However, mid'rabbanan, the Chachamim don't want chametz in your house — you might come to eat it.

Situation	What To Do
Chol HaMoed	Do **not** lift it up — unlike your own chametz which you lift to destroy, here you're not destroying it (it belongs to the non-Jew). Lifting creates a concern you may eat it. Instead, **prod it away with a stick** back into the non-Jew's domain.
Shabbat / Yom Tov	Cannot even prod it (tiltul min ha-tzad issues — see below). **Cover it over** with a utensil. After the Chag, prod it back.

Muktze Subtlety: Tiltul Min Ha-Tzad vs. Tiltul Be-Shinui

Type	Definition	Example	Permitted on Shabbat/YT?
Tiltul min ha-tzad (indirect movement)	Using another object to move the muktze item	Prodding chametz with a stick	Generally **asur** — this is why you can't prod it on Shabbat/YT
Tiltul be-shinui (movement in an unusual manner)	Moving the item yourself but in a strange/unusual way	Pushing it with your elbow	Generally **mutar** — permitted when there's a need

- So theoretically, you could push the non-Jew's chametz away **with your elbow** on Shabbat/Yom Tov. But you should not lift it, even with a shinui, because of the concern you may come to eat it.

- The simplest option remains: cover it over.

What About Hefker Chametz? (Ownerless Chametz — e.g., a Fox Brought Bread into Your Garden)

- A chatzer (courtyard) acquires hefker items automatically — **chatzer koneh** — so this chametz may technically belong to you.
- The Kol Chamira formula you said before Pesach does **not** cover chametz that arrived after Pesach began.
- **However:** You are an **ones** (completely helpless / couldn't have prevented it), and the Mishnah Berurah says in such a case, you just cover it over. You didn't do anything wrong — you didn't forget, didn't leave it.
- **Preventive measure:** Before Pesach, one can declare: "I explicitly do not want my chatzer to acquire any chametz on my behalf." This removes the automatic acquisition.

Se'if 4 (Discussed in class) — Doubt: Is This Matzah or Bread?

Shulchan Aruch: If you find food in your house on Pesach and have a genuine doubt — is it matzah or bread?

- You may **assume it is matzah** and eat it.
- **Why?** The presumption (chazakah) is that it came from the most recent time — i.e., after you cleaned for Pesach. Since you did bedikat chametz, whatever you find now is presumed to be Pesach food.
- **If it is moldy** — and it couldn't have become that moldy since the start of Pesach — you must throw it out (it's clearly from before Pesach).

Applicability today: This would apply to soft/thick matzah (Sephardi-style) that could be confused with pita or laffa. With modern cracker matzah, confusion with bread is essentially impossible. However, a scenario could arise with matzah marked "not suitable for Pesach use" (factory matzah made year-round) mixed up with kosher-for-Pesach matzah.

Rabbeinu Hananel's understanding: This halacha only means you don't have to destroy it after Pesach (it won't have the status of chametz she'avar alav ha-Pesach). But you should **not** eat it during Pesach itself.

Biur Halacha: Better not to rely on this leniency in practice. Wait until after Pesach to eat it.

Siman 446 — Summary

Finding	Chol HaMoed	1st/7th Day (YT de'oraita)	2nd/8th Day (YT de-rabbanan)
Your chametz — did bitul	Take out & destroy immediately	Cover over; destroy after Chag	Cover over; destroy after Chag
Your chametz — did NOT do bitul	Take out & destroy immediately	Cover over (Shulchan Aruch/Rambam — even here, don't violate muktze). Best: ask a non-Jew.	**Take out & destroy** — violate muktze (double de-rabbanan vs. de'oraita)
Non-Jew's chametz	Prod away with a stick; don't lift it	Cover over	Cover over

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Siman 447 — Mixtures of Chametz on Pesach (תערובות חמץ בפסח)

Beginning of a large chapter — introduction and Se'ifim 1–2 covered

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Essential Background: Three Principles of Kashrut (Year-Round)

Before learning the Pesach-specific halachot, one must understand the basic kashrut principles that apply throughout the year. These form the foundation for understanding what changes on Pesach.

Principle 1: Lach Be-Lach (Liquid with Liquid — לח בלח)

Definition: Two liquids mixed together, or a solid that fell into a liquid.

Examples: Non-kosher sauce mixed with kosher sauce; non-kosher wine poured into kosher wine; a piece of kosher meat falling into non-kosher sauce.

The rule: Because liquids fully intermingle, the taste (ta'am) transfers completely. Therefore:

Sub-type	De'oraita	De-rabbanan
Min be-she'eino mino (different flavours)	Need **1 in 60** — until 60 times more kosher than non-kosher, the taste is still present	Need 1 in 60
Min be-mino (same flavour)	**Majority** suffices (rov) — since flavours are identical, there's no distinguishable taste	Still need **1 in 60** (rabbinic stringency)

Note on tasting: Theoretically, if a non-Jew who is an expert taster confirmed there's no non-kosher taste, one could rely on less than 1 in 60. In practice, we don't do this — the Chachamim established fixed thresholds: under 60 = definitely taste present; over 60 = definitely no taste.

Principle 2: Two Hot Solids Touching (יבש ביבש — חם בחם)

Definition: Two solid pieces of food touching each other — one kosher, one non-kosher — with heat involved.

The rule: Since they're solid, taste doesn't fully transfer like with liquids. The transfer is limited to the surface area of contact.

Scenario	How Much to Remove from the Kosher Piece
Both hot (45°C+ / yad soledet bo)	**Kedei netilah** — cut away a **thumb-breadth** from where they touched
One hot, one cold (regardless of which)	**Kedei klipah** — peel away a **thin sliver** from the point of contact
Both cold	Just **wash it** — no heat means no meaningful transfer

Exception — fatty/oily (shaman): If either piece is very fatty, oily, or has bubbling liquids, the fat can transfer taste across the entire piece. In that case, the leniency of kedei netilah/klipah doesn't apply — you need **1 in 60** (like Principle 1).

Principle 3: Mixture Without Taste Transfer (תערובת בלי טעם)

Definition: Kosher and non-kosher foods got mixed together in the same container/bag, but they haven't touched, cooked together, or transmitted taste to each other. You simply don't know which is which.

Examples: Pieces of kosher and non-kosher meat mixed in the same bag (not touching, both cold).

Sub-type	De'oraita	De-rabbanan
Min be-mino (same type/flavour)	**Majority** suffices — can eat all pieces (each individually)	Can eat all pieces, but **cannot cook them together**
Min be-she'eino mino (different flavours)	Majority suffices	Need **1 in 60** — gezeirah: you might come to cook them together, which would trigger Principle 1

How These Principles Change on Pesach

The Key Difference: Be-Mashehu (במשהו) — Even One Drop Prohibits

Shulchan Aruch (Se'if 1): On Pesach, a mixture of chametz — whether min be-mino or min be-she'eino mino — is forbidden **be-mashehu** (with even the tiniest amount). Even one drop of chametz liquid in a thousand parts of kosher food renders the entire mixture forbidden.

This applies to **Principle 1 (lach be-lach)** situations — where during the year you would need 1 in 60, on Pesach even 1 in 1,000 is forbidden.

Two Reasons Given by the Rishonim

Reason	Explanation
Severity of chametz	Chametz on Pesach carries karet — far more severe than standard non-kosher food (which carries only malkut). The Chachamim therefore applied a stricter standard.
Davar she-yesh lo matirin	Chametz is something that will become permitted after Pesach. Since you can simply wait and eat it later, the Chachamim said: don't rely on nullification now when the prohibition is temporary.

Important: This be-mashehu rule is **de-rabbanan**. Mid'oraita, even on Pesach, 1 in 60 would suffice.

Minority Opinion: Rabbeinu Tam and the Sheiltot

Rabbeinu Tam, the Sheiltot (one of the Geonim), and Abba HaGaon held that even on Pesach, standard year-round rules apply — 1 in 60 suffices. The Shulchan Aruch does **not** follow this, but the Mishnah Berurah notes that in **extremely pressing circumstances** (e.g., very large financial loss, major communal event), there is **something to rely on** in the background, bearing in mind the entire be-mashehu rule is de-rabbanan.

Se'if 1 — The Halacha of Be-Mashehu

Shulchan Aruch: A mixture on Pesach — whether min be-mino or min be-she'eino mino — is forbidden be-mashehu (even with one drop). It is forbidden even to have benefit from (asur be-hana'ah).

Rama adds: Some poskim suggested you could sell the mixture to a non-Jew, deducting the value of the chametz portion (so you don't benefit from the isur). But the Rama rules: **we do not do this.** The entire mixture must be destroyed. However, the utensils used do **not** need to be kashered — they can be used for future Pesach.

What Principle 2 (Hot Solids Touching) on Pesach?

Shulchan Aruch: The be-mashehu rule only applies where you would normally need 1 in 60 during the year (i.e., Principle 1 situations). Where you would only need kedei netilah or kedei klipah (Principle 2 — two hot/warm solids touching without fatty liquid), **those same leniencies still apply on Pesach.**

Example: A hot piece of bread touched a hot piece of matzah on Pesach — cut away a thumb-breadth (kedei netilah) from the matzah, and the rest is fine. No be-mashehu here, because there was never a 1 in 60 issue to begin with.

Exception: If the solids are fatty/oily (shaman), then you're back to needing 1 in 60 — which on Pesach means be-mashehu.

Se'if 2 — When Did the Mixture Occur?

Shulchan Aruch: The be-mashehu rule only applies to mixtures that occurred **during the seven days of Pesach itself** (or eight days outside Israel).

- If chametz became mixed in **before Pesach** (even from chatzot onwards on Erev Pesach when eating is already forbidden), the year-round rule of 1 in 60 applies — not be-mashehu.
- The special stringency of be-mashehu is limited to the seven/eight days of Pesach proper.

Introduction to Noten Ta'am Li-Fgam (נותן טעם לפגם)

Principle: If a non-kosher taste has been absorbed in a utensil for more than 24 hours, it becomes "pagum" (degraded/spoiled). A degraded taste that transfers to food is called **noten ta'am li-fgam** — "it gives a spoiled taste."

Year-round halacha: Bedi'avad, if you accidentally cooked in a non-kosher pot that hadn't been used for 24+ hours, the food is **permitted**. The absorbed taste is considered spoiled and doesn't prohibit.

On Pesach:

Opinion	Ruling on Noten Ta'am Li-Fgam
Shulchan Aruch	Same leniency applies on Pesach — noten ta'am li-fgam is permitted bedi'avad, just like during the year
Rama	More stringent — does not apply this leniency on Pesach itself. However, agrees it applies **from six hours on Erev Pesach** (when chametz is already forbidden rabbinically but Pesach hasn't yet begun)

Practical implication: If you accidentally cooked Pesach food in a chametz pot that hadn't been used for 24+ hours — according to Sephardim (Shulchan Aruch), the food is permitted bedi'avad.

Summary of Key Halachot

Siman:Se'if	Key Takeaways
446:1	Find chametz on Chol HaMoed: take out and destroy immediately. On Yom Tov (1st/7th): cover it (muktze mahamat gufo). Even if no bitul was done, Shulchan Aruch says cover — don't violate muktze against a passive de'oraita. Best option: ask a non-Jew (shvut de-shvut le-tzorech mitzvah).
446:1 (2nd/8th day)	If bitul was done: cover. If bitul was NOT done: take out and destroy (violate muktze de-rabbanan on de-rabbanan Yom Tov to avoid isur de'oraita).
446:3	Non-Jew's chametz in your domain: no isur de'oraita. Chol HaMoed: prod with stick. Shabbat/YT: cover over. Tiltul min ha-tzad (indirect prodding) is asur; tiltul be-shinui (elbow) is mutar.
446:3 (hefker)	Ownerless chametz (e.g., fox brought bread): chatzer koneh applies — may technically be yours. You're an ones; just cover it. Preventive: declare before Pesach that chatzer should not acquire chametz.
446:4	Doubt if food is matzah or bread: may assume matzah (chazakah — came from most recent time). If moldy: throw out. Biur Halacha: better not to eat on Pesach — wait until after.
447:1	On Pesach, mixtures are forbidden **be-mashehu** (even one drop) — unlike 1 in 60 during the year. This is de-rabbanan. Applies to lach be-lach situations. Asur even be-hana'ah. Utensils don't need kashering.
447:1 (solids)	Kedei netilah / kedei klipah still apply on Pesach for hot solids touching — be-mashehu only overrides where you'd normally need 1 in 60.
447:1 (Rabbeinu Tam)	Minority opinion: standard 1 in 60 applies even on Pesach. Not followed, but available as background leniency in extreme circumstances.
447:2	Be-mashehu only applies to mixtures that occurred **during Pesach itself**. Mixtures from before Pesach: standard 1 in 60 applies.
447 (noten ta'am li-fgam)	Degraded taste (24+ hours in utensil): Shulchan Aruch permits bedi'avad on Pesach. Rama is strict on Pesach itself but lenient from 6 hours on Erev Pesach.

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